Department of State
Division of Publications
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Nashville, TN 37243
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For Department of State Use Only

Sequence Number: 12-24-25
Rule ID(s): 10495
File Date: 12/18/2025
Effective Date: 3/18/2026

Rulemaking Hearing Rule(s) Filing Form

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission:	Tennessee Department of Commerce and Insurance
Division:	Scrap Metal Dealer Registration Program
Contact Person:	Anna D. Matlock
Address:	500 James Robertson Parkway, Nashville, Tennessee
Zip:	37243
Phone:	(615) 253-0070
Email:	Anna.Matlock@tn.gov

Revision Type (check all that apply):

X Amendment
___ New
___ Repeal
___ Content based on previous emergency rule filed on _____
___ Content is identical to the emergency rule

Rule(s) (**ALL** chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row.)

Chapter Number	**Chapter Title**
0780-05-14	Scrap Metal Dealer Registration Program
Rule Number	**Rule Title**
0780-05-14-.03	Registration
0780-05-14-.05	Renewals
0780-05-14-.06	Fees

Chapter 0780-05-14
Scrap Metal Dealer Registration Program
Amendments

Rule 0780-05-14-.03 Registration, Paragraph (2) is amended by deleting the text "license" and substituting the text "registration," Paragraph (4) is amended by deleting the text of the Paragraph in its entirety, and the authority is amended by deleting the text of the authority and substituting language instead, so that, as amended, the rule shall read:

(1) Any person who buys, exchanges, or deals in scrap metal must register with the Department of Commerce and Insurance as a scrap metal dealer.

(2) Employees of a registered scrap metal dealer need not procure a separate scrap metal dealer registration, unless the employee is buying, exchanging or dealing in scrap metal outside the scope of such employment.

(3) All registrations issued under this part shall expire two (2) years from the date of issuance or renewal thereof.

(4) A change in address for a registrant or any business location shall be reported to the Department within thirty (30) days.

Authority: T.C.A. § 62-9-102.

Rule 0780-05-14-.05 Renewals, Paragraph (7) is amended by deleting the text of the Paragraph in its entirety and substituting language instead, so that, as amended Paragraph (7) shall read:

(7) A registrant who fails to pay the renewal fee, or otherwise fails to comply with any of the prerequisites for renewal of a registration before the expiration date, will have six (6) months after the expiration date of the registration to renew the registration upon payment of the renewal fee, payment of a late penalty fee for each month that renewal is late, and submittal of proof of compliance with any other prerequisites to renewal. Any person seeking renewal beyond six (6) months after the date of expiration must submit a new application.

Authority: T.C.A. §§ 62-9-102 and 62-9-110.

Rule 0780-05-14-.06 Fees, is amended by adding a new Paragraph (3), so that, as amended, the rule shall read:

(1) All applications for registration under the Act shall be accompanied by a non-refundable fee of two hundred dollars ($200.00).

(2) All applications for renewal of registration under the Act shall be accompanied by a non-refundable fee of one hundred seventy-five dollars ($175.00).

(3) The late penalty fee is twenty-five dollars ($25.00) for each month that renewal is late.

Authority: T.C.A. § 62-9-102.

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)
N/A					

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Tennessee Department of Commerce and Insurance (board/commission/other authority) on September 29, 2025 (mm/dd/yyyy) and is in compliance with the provisions of T.C.A. § 4-5-222.

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: August 6, 2025

Rulemaking Hearing(s) Conducted on: (add more dates). September 29, 2025

Date: December 16, 2025

Signature: Reid Witcher

Name of Officer: Reid Witcher

Title of Officer: Assistant Commissioner for Regulatory Boards

Agency/Board/Commission: Tennessee Department of Commerce and Insurance

Rule Chapter Number(s): 0780-05-14 Scrap Metal Dealer Registration Program

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

Jonathan Skrmetti
Attorney General and Reporter

December 16, 2025
Date

Department of State Use Only

Filed with the Department of State on: 12/18/2025

Effective on: 3/18/2026

Tre Hargett
Secretary of State

RECEIVED
Dec 18 2025, 3:20 pm
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Division of Publications

Public Hearing Comments

The Department received zero (0) public comments in advance of the rulemaking hearing, and zero (0) comments at the rulemaking hearing.

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-101 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

The type or types of small business and an identification and estimate of the number of small businesses subject to the rule being proposed that would bear the cost of, or directly benefit from the rule being proposed;

The Department does not foresee small businesses bearing significant costs to comply with the rule amendments. Although most of the Program's registrants are small businesses, these rule amendments will apply equally. As the rule amendments impose no new registration requirements, and the new fee only applies to late renewal registrants, a cost of compliance, if any, will be minimal.

The projected reporting, recordkeeping and other administrative costs required for compliance with the rule being proposed, including the type of professional skills necessary for preparation of the report or record;

The Department does not foresee a cost for the administration and enforcement of these rules.

A statement of the probable effect on impacted small businesses and consumers;

The Department does not foresee a significant impact on small businesses with these rule amendments. Although most registrants are small businesses, these rule amendments apply to all registrants within the industry equally.

A description of any less burdensome, less intrusive or less costly alternative methods of achieving the purpose and objectives of the rule being proposed that may exist, and to what extent the alternative means might be less burdensome to small business

The Department knows of no other less restrictive or burdensome means than through the promulgation of these rules as amended.

A comparison of the rule being proposed with any federal or state counterparts; and

Rules and regulations for scrap metal dealers vary across the country. However, the rule amendments may be like current or proposed rules and regulations in other state-level regulating jurisdictions. The Department is unaware of any similar or existing proposed federal rules.

Analysis of the effect of the possible exemption of small businesses from all or any part of the requirements contained in the rule being proposed.

The Department does not foresee the need for a possible small business exemption of the requirements in the proposed rules. The rule amendments apply equally to all registered scrap metal dealers in the industry, regardless of the size of their business. Therefore, the Department does not see a disparate impact to small businesses. Additionally, the rule amendments provide a clerical update for simplicity and ease, which may assist small businesses in their daily practices. Therefore, an exemption for small businesses would not be beneficial.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

The Department foresees no impact on any local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

(A) A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

The proposed rules amend a mailing registration requirement and certain changes to the registration expiration process resulting from the Department's review as required by the General Assembly's enactment of Tenn. Code Ann. § 4-5-213. Most of the rule amendments are clerical and do not impose any additional registration standards. Specifically, the rule amendments remove the requirement for withdrawn registrations to return their certificate of registration to the Program, and permit registrants to pay a penalty fee of Twenty-Five Dollars ($25.00) per month for late renewals up to six (6) months beyond the renewal date, instead of requiring an immediate new application.

(B) A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

There are no known federal or state laws or regulations mandating the promulgation of these amendments.

(C) Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

The rule amendments affect current and future registrants. Proponents of the rule amendments include current and future registrant, as the amendments positively impact the Program and are designed to aid in financial stability and ease a registration requirement. The Program does not foresee a segment of opponents to the amendments; however, the impacted registrants may disagree with the proposed amendments.

(D) Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

There are no known opinions of the Attorney General and Reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rules.

(E) An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

By adding a late penalty fee of Twenty-Five Dollars ($25.00) for late registration renewals, the Program foresees a modest increase in revenue of approximately 5.89% or Four Thousand Two Hundred Seventy-Five Dollars ($4,275.00) per year. Expenditures will not be impacted.

(F) Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Anna D. Matlock, Associate General Counsel, Tennessee Scrap Metal Dealer Registration Program
Roxana Gumucio, Executive Director, Tennessee Scrap Metal Dealer Registration Program
Reid Witcher, Assistant Commissioner for Regulatory Boards

(G) Identification of the appropriate agency representative or representatives who will explain the rule at a scheduled meeting of the committees;

Anna D. Matlock, Associate General Counsel, Tennessee Scrap Metal Dealer Registration Program
Roxana Gumucio, Executive Director, Tennessee Scrap Metal Dealer Registration Program
Reid Witcher, Assistant Commissioner for Regulatory Boards

(H) Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

Anna D. Matlock 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 253-0070 Anna.Matlock@tn.gov Roxana Gumucio 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 532-7081 Roxana.Gumucio@tn.gov Reid Witcher 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 532-7922 Reid.Witcher@tn.gov

(I) Any additional information relevant to the rule proposed for continuation that the committee requests.

N/A

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Agency/Board/Commission:	Tennessee Department of Commerce and Insurance
Division:	Scrap Metal Dealer Registration Program
Contact Person:	Anna D. Matlock
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Chapter 0780-05-14
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(1) Any person who buys, exchanges, or deals in scrap metal must register with the Department of Commerce and Insurance as a scrap metal dealer.

(2) Employees of a registered scrap metal dealer need not procure a separate scrap metal dealer registration ~~license~~, unless the employee is buying, exchanging or dealing in scrap metal outside the scope of such employment.

(3) All registrations issued under this part shall expire two (2) years from the date of issuance or renewal thereof.

~~(4) Registration may be withdrawn by mailing the certificate of registration, along with any accompanying form required by the Department, back to the Department.~~

(4)~~(5)~~ A change in address for a registrant or any business location shall be reported to the Department within thirty (30) days.

Authority: T.C.A. § 62-9-102 ~~62-9-104~~.

Rule 0780-05-14-.05 Renewals, Paragraph (7) is amended by deleting the text of the Paragraph in its entirety and substituting language instead, so that, as amended Paragraph (7) shall read:

(7) A registrant who fails to pay the renewal fee, or otherwise fails to comply with any of the prerequisites for renewal of a registration before the expiration date, will have six (6) months after the expiration date of the registration to renew the registration upon payment of the renewal fee, payment of a late penalty fee for each month that renewal is late, and submittal of proof of compliance with any other prerequisites to renewal. Any person seeking renewal beyond six (6) months after the date of expiration must submit a new application.~~Registrations cannot be renewed after they expire. If a registration is not renewed prior to expiration, a new application will be required to be submitted.~~

Authority: T.C.A. §§ 62-9-102 and 62-9-110.

Rule 0780-05-14-.06 Fees, is amended by adding a new Paragraph (3), so that, as amended, the rule shall read:

(1) All applications for registration under the Act shall be accompanied by a non-refundable fee of two hundred dollars ($200.00).

(2) All applications for renewal of registration under the Act shall be accompanied by a non-refundable fee of one hundred seventy-five dollars ($175.00).

(3) The late penalty fee is twenty-five dollars ($25.00) for each month that renewal is late.

Authority: T.C.A. § 62-9-102.

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)
N/A					

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Tennessee Department of Commerce and Insurance (board/commission/other authority) on September 29, 2025 (mm/dd/yyyy) and is in compliance with the provisions of T.C.A. § 4-5-222.

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: August 6, 2025

Rulemaking Hearing(s) Conducted on: (add more dates). September 29, 2025

Date: _____

Signature: _____

Name of Officer: Reid Witcher

Title of Officer: Assistant Commissioner for Regulatory Boards

---

Agency/Board/Commission: Tennessee Department of Commerce and Insurance

Rule Chapter Number(s): 0780-05-14 Scrap Metal Dealer Registration Program

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

_____
Jonathan Skrmetti
Attorney General and Reporter

_____
Date

Department of State Use Only

Filed with the Department of State on: _____

Effective on: _____

_____
Tre Hargett
Secretary of State

Public Hearing Comments

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The type or types of small business and an identification and estimate of the number of small businesses subject to the rule being proposed that would bear the cost of, or directly benefit from the rule being proposed;

The Department does not foresee small businesses bearing significant costs to comply with the rule amendments. Although most of the Program's registrants are small businesses, these rule amendments will apply equally. As the rule amendments impose no new registration requirements, and the new fee only applies to late renewal registrants, a cost of compliance, if any, will be minimal.

The projected reporting, recordkeeping and other administrative costs required for compliance with the rule being proposed, including the type of professional skills necessary for preparation of the report or record;

The Department does not foresee a cost for the administration and enforcement of these rules.

A statement of the probable effect on impacted small businesses and consumers;

The Department does not foresee a significant impact on small businesses with these rule amendments. Although most registrants are small businesses, these rule amendments apply to all registrants within the industry equally.

A description of any less burdensome, less intrusive or less costly alternative methods of achieving the purpose and objectives of the rule being proposed that may exist, and to what extent the alternative means might be less burdensome to small business

The Department knows of no other less restrictive or burdensome means than through the promulgation of these rules as amended.

A comparison of the rule being proposed with any federal or state counterparts; and

Rules and regulations for scrap metal dealers vary across the country. However, the rule amendments may be like current or proposed rules and regulations in other state-level regulating jurisdictions. The Department is unaware of any similar or existing proposed federal rules.

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(B) A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

There are no known federal or state laws or regulations mandating the promulgation of these amendments.

(C) Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

The rule amendments affect current and future registrants. Proponents of the rule amendments include current and future registrant, as the amendments positively impact the Program and are designed to aid in financial stability and ease a registration requirement. The Program does not foresee a segment of opponents to the amendments; however, the impacted registrants may disagree with the proposed amendments.

(D) Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

There are no known opinions of the Attorney General and Reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rules.

(E) An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

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Anna D. Matlock 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 253-0070 Anna.Matlock@tn.gov Roxana Gumucio 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 532-7081 Roxana.Gumucio@tn.gov Reid Witcher 500 James Robertson Parkway, Nashville, Tennessee 37243 (615) 532-7922 Reid.Witcher@tn.gov

(I) Any additional information relevant to the rule proposed for continuation that the committee requests.

N/A